

6	Cervantes v. Goton Tiles, Inc. 2024-01423863	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> Plaintiff Jennifer Cervantes moves for preliminary approval of a class action and PAGA settlement. Plaintiff's counsel states the settlement agreement is attached as Exhibit 1 to counsel's declaration. Robinson Decl. (ROA 62) ¶ 2. Exhibit 1 to counsel's declaration is the proposed class notice. The court has been unable to locate the settlement agreement in plaintiff's motion papers or elsewhere in the court file. Because plaintiff has not submitted a copy of the settlement agreement to the court, the court lacks sufficient information to evaluate the settlement. Plaintiff's motion for preliminary approval is denied without prejudice. Clerk to give notice.
7	Corral v. JMW Cabinets, Inc. 2024-01376239	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$100,000 PAGA settlement. The court has the following questions and comments: 1. Were the motion papers served on the LWDA? Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. The "Released Parties" provision in paragraph 1.27 of the settlement agreement is overbroad. It includes ambiguous, unidentified and/or unrelated third parties such as "insurers," "affiliates," "entities (including those entities named as respondents and/or defendants in Plaintiff's LWDA letters or the Action)," "agents, attorneys, administrators, and representatives." 3. When is the aggrieved employees release effective? Settlement Agreement ¶ 5. The court will not require the aggrieved employees to release claims until defendant has fully funded the settlement. 4. The "Released PAGA Claims" provision in paragraph 5 is overbroad. Releases for aggrieved employees other than plaintiff should not release more than the civil penalties